



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35771863

Date: JAN. 16, 2025

Appeal of Vermont Service Center Decision

Form I-360, Petition for Amerasian, Widow(er), or Special Immigrant (Abused Spouse of U.S. Citizen or Lawful Permanent Resident)

The Petitioner seeks immigrant classification as an abused spouse of a U.S. citizen. *See* Immigration and Nationality Act (the Act) section 204(a)(1)(A)(iii), 8 U.S.C. § 1154(a)(1)(A)(iii). Under the Violence Against Women Act (VAWA), an abused spouse may self-petition as an immediate relative rather than remain with or rely upon an abuser to secure immigration benefits.

The Director of the Vermont Service Center denied the Form I-360, Petition for Amerasian, Widow(er), or Special Immigrant (VAWA petition), concluding that the record did not establish that the Petitioner's prior marriage in Nigeria was terminated before he married his U.S. citizen spouse, as required to show that he has a qualifying relationship and is eligible for immigrant classification. Additionally, the Director determined that the Petitioner did not establish that he resided with his U.S. citizen spouse and married her in good faith, as required. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will dismiss the appeal.

I. LAW

A petitioner who is the spouse of a U.S. citizen may self-petition for immigrant classification under VAWA if the petitioner demonstrates, among other requirements, that they were battered or subjected to extreme cruelty perpetrated by their spouse and have resided with their spouse. Section 204(a)(1)(A)(iii) of the Act. Section 101(a)(33) of the Act provides that, as used in the Act, "[t]he term 'residence' means the place of general abode . . . [a person's] principal, actual dwelling place in fact, without regard to intent." 8 U.S.C. § 1101(a)(33).

Petitioners are "encouraged to submit primary evidence whenever possible," but may submit any relevant, credible evidence to establish eligibility. 8 C.F.R. § 204.2(c)(2)(i). U.S. Citizenship and

Immigration Services (USCIS) determines, in our sole discretion, what evidence is credible and the weight to give such evidence. Section 204(a)(1)(J) of the Act; 8 C.F.R. § 204.2(c)(2)(i).

II. ANALYSIS

The Petitioner, a native and citizen of Nigeria, entered the United States in October 2016. He claims to have married to A-A-¹ in Nigeria in [] 2013 and divorced her in [] 2016. He came to the United States in October 2016 and A-A- and their two children arrived in December 2016. The Petitioner claims that he and A-A- did not live together in the United States but lived near each other in Maryland. He married his first U.S. citizen spouse, P-E-, in [] 2017, separated from her in November 2017, and divorced her in [] 2018. He married his second U.S. citizen spouse, V-F-, in [] 2018.

The Petitioner filed his VAWA petition in January 2020 based on a claim of abuse by V-F-. After considering the Petitioner's response to a notice of intent to deny (NOID), the Director denied the VAWA petition. As relevant to this decision, the Director explained the Petitioner had not resolved discrepancies in the evidence about his claimed joint residence with V-F-. Additionally, the Director determined that the Petitioner did not establish the termination of his prior marriage to A-A- in Nigeria and that he had married V-F- in good faith, although we will not reach those issues here.

On appeal, the Petitioner presents a brief, a copy of the U.S. Department of State Reciprocity Schedule for Nigeria, and a supporting letter, and asserts that the Director's decision was in error.

A. The Petitioner Has Not Established that he Resided Jointly with his U.S. Citizen Spouse

Upon de novo review, we agree with the Director that the Petitioner has not met his burden of establishing that he resided jointly with V-F-, the U.S. citizen spouse upon whom the VAWA petition is based. Regarding his address history, the Petitioner states that in February 2017 he moved into an apartment with a roommate in [] Maryland, where he resided until April 2018. In his VAWA petition, he claims he lived with V-F-² at an apartment in [] Maryland from May 2018 through May 2019. As supporting evidence with his VAWA petition, he submitted a lease agreement signed in August 2018 reflecting a lease term at the [] apartment from September 2018 to July 2019. He also provided joint bank account statements for July 2018 through March 2019; a vehicle title issued in April 2018 and listing the Petitioner and V-F- as the vehicle owners; an automobile insurance card listing the Petitioner and V-F-, valid from December 2019 to June 2020; a psychological evaluation; and a personal statement.

In the NOID, the Director noted inconsistencies in the evidence relating to the Petitioner's claim of joint residence. The Director explained that court documents reflect complaints filed against the Petitioner for failure to pay rent in March and July 2019 at the [] Maryland apartment where he claims to have resided with V-F- until May 2019, when she forced him to leave. Furthermore, court documents show failure to pay rent complaints filed against the Petitioner for the months of February, April, June, and November of 2019, as well as January of 2020, at his prior address in []

¹ We use initials to protect confidential information.

² When or whether he resided with his first U.S. citizen spouse is unclear from the record.

Maryland, which he claims to have left in April 2018. Additionally, the Director noted that the Petitioner obtained a Maryland driver's license in March 2019, when he claims to have lived at the [REDACTED] apartment, listing a different address as his residence. Although the joint vehicle title lists both the Petitioner and V-F- as owners, it bears the Petitioner's prior [REDACTED] address, where the Petitioner did not claim to have lived with V-F-. And the joint automobile insurance card begins coverage in December 2019, several months after he claims to have moved out of the shared apartment with V-F- in May 2019. Finally, the joint bank statements do not reflect that two individuals actually used the account, and do not appear to list transactions related to a shared household such as bills, rent, or insurance.

In response to the NOID, the Petitioner submitted a personal statement in which he claimed that he was living at the [REDACTED] apartment with a roommate when he met V-F-. He stated that when he bought a car, he was still living in [REDACTED] but listed V-F- on the title and insurance so that she could also drive it. Additionally, he stated that when he moved out of the [REDACTED] apartment to live with V-F-, his roommate, O-U-, begged him to maintain the lease so that he could continue living there. Allegedly, O-U- then failed to pay the rent, resulting in complaints against the Petitioner as the leaseholder. As supporting evidence, he submitted a letter from O-U- stating that he moved into the [REDACTED] apartment with the Petitioner in April 2018 and continued living there after the Petitioner moved out. According to O-U-, he stayed in the apartment until the lease expired in January 2020. As for the address on his Maryland driver's license, the Petitioner claimed that after moving out of his shared residence with V-F- in May 2019, he changed his address on the Maryland Motor Vehicle Administration website but did not obtain a new license.

The Director acknowledged this evidence but denied the VAWA petition because the discrepancies had not been resolved. The Director explained that USCIS conducted an investigation which produced records showing that utility bills for the [REDACTED] address remained in the Petitioner's name until July 2020, more than two years after he claims to have moved out of that apartment and several months after O-U- claims the lease expired in January 2020. Furthermore, the Director noted that although the Petitioner claimed to have a roommate when he moved into the [REDACTED] apartment in February 2017, O-U- did not claim to have moved in until April 2018, which was shortly before the Petitioner allegedly moved out to live with V-F-. Also, although the Petitioner claimed to have lived at the [REDACTED] apartment until April 2018, he did not state whether his first U.S. citizen spouse, P-E-, lived with him there after he married her in [REDACTED] 2017. Finally, the Director noted that the USCIS investigation found that the Petitioner's Nigerian spouse, A-A-, connected a utility at the [REDACTED] address in November 2018. This was several months after the Petitioner claims to have moved out of that apartment, and the Petitioner states he has never lived with A-A- in the United States.

On appeal, the Petitioner argues generally that he submitted sufficient evidence of joint residence including a lease agreement, bank account statements, a vehicle title, automobile insurance, and supporting affidavits. He further claims that the Director erred by relying on derogatory evidence without first issuing a NOID to give him an opportunity to respond. Specifically, he asserts that the information in the denial stating that the Petitioner remained on the utility bills at his [REDACTED] address after both he and O-U- allegedly moved out of the apartment, and that his Nigerian spouse A-A- opened a utility service at that address in November 2018, was derogatory evidence that he should have had a chance to rebut. In response on appeal, he submits a statement from O-U- stating that he

tried to have a utility bill transferred to his name but the company refused because only the Petitioner was on the lease. Where an adverse decision will be based on derogatory information of which a petitioner is unaware, USCIS must first notify the petitioner and give them an opportunity to rebut the information. 8 C.F.R. § 103.2(b)(16)(i). The fact that the Petitioner opened and maintained a utility account for his apartment is not derogatory information of which he was unaware. O-U-'s statement does not address why the Petitioner's name remained on the utilities for several months after his roommate moved out and the lease ended, or why the name on the lease was not changed between the time the Petitioner moved out in April 2018 and O-U-'s departure in January 2020. The lack of explanation as to why the Petitioner remained on the lease for such an extended period is not reasonable, particularly in light of the Petitioner's claim that the multiple failure to pay rent complaints filed against him were due to O-U-'s failure to pay. The Petitioner also has not addressed O-U-'s statement that he did not move into their shared apartment until April 2018, shortly before the Petitioner claims he moved out. Further, it is not clear why O-U-'s name was not placed on the lease at the time he moved in since the Petitioner and V-F- married in [] 2018 and, per the Petitioner's statement, had already made plans to move to another location.

As for the evidence that A-A- opened a utility at the [] apartment address, where the Petitioner claims she never lived and while the Petitioner was allegedly living elsewhere with V-F-, the Petitioner states on appeal that he cannot respond because the Director did not provide him with the name of the utility involved. He "requests for opportunity to provide documentation on this issue," but has not submitted any explanation or evidence. USCIS is not required to provide a petitioner with an exhaustive list or documentation of derogatory information as long as it advises the petitioner of that information and provides them an opportunity to respond. *See, e.g., Ogbolumani v. Napolitano*, 557 F.3d 729, 735 (7th Cir. 2009) (explaining that 8 C.F.R. § 103.2(b)(16)(i) "does not require USCIS to provide, in painstaking detail, the evidence of fraud it finds" and that a NOID provided sufficient notice and opportunity to respond to the derogatory information); *Hassan v. Chertoff*, 593 F.3d 785, 787 (9th Cir. 2010) (concluding that 8 C.F.R. § 103.2(b)(16)(i) requires only that the government make a petitioner aware of the derogatory information used against them and provide the opportunity to explain--"[t]he regulation . . . requires no more of the government."); *Zizi v. Field Office Director*, 753 Fed. Appx. 116, 117 (3rd Cir. 2019) (stating that 8 C.F.R. § 103.2(b)(16)(i) "does not require the Government to provide 'actual documents[;]'" instead, it "requires only that [the] petitioner 'be advised' of derogatory information and 'offered an opportunity to rebut the information and present information [o]n his . . . own behalf"). Although the Director should have allowed the Petitioner an opportunity to address this evidence prior to issuing the denial, the error was harmless, as the record contains multiple other inconsistencies that prevent the Petitioner from meeting his burden regardless of this single issue.

The Petitioner does not offer any other arguments or evidence to address the other specific discrepancies the Director raised. In addition to the issues noted above, it remains unclear why the Petitioner's lease with V-F- in [] relates to a period beginning several months after he claims they began to live together there. The psychological evaluation states he and V-F- "established their home together in [] Maryland. They secured a lease on their apartment [in] April . . . 2018 and moved into their apartment [in] May . . . 2018." However, the lease was signed in August 2018 for occupancy beginning in September. And despite his claim that he changed the address on his driver's license after moving out of the shared [] apartment in May 2019, the copy of the updated driver's license he submitted shows that it was issued in March 2019, prior to the date he

claims to have moved. Due to unresolved discrepancies, the record as supplemented on appeal does not establish by a preponderance of the evidence that the petitioner resided with V-F-, as required.

B. Remaining Eligibility Criteria for VAWA Classification

The Petitioner is ineligible for VAWA classification because he has not met his burden of showing that he resided with his U.S. citizen spouse. Accordingly, we need not reach, and therefore reserve, the issues of whether the Petitioner has a qualifying relationship with his U.S. citizen spouse and married her in good faith. *See INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (per curiam) (holding that agencies are not required to make “purely advisory findings” on issues that are unnecessary to the ultimate decision).

III. CONCLUSION

The Petitioner has not established that he resided with his U.S. citizen spouse, as required. Consequently, he has not demonstrated his eligibility for immigrant classification under VAWA.

ORDER: The appeal is dismissed.